

Government & Regulatory Agency Outreach Plan

Blue Ridge Stream Restoration & Mitigation LLC

Co-Founder & Managing Director: Hunter Morris (*Fly Fishing North Georgia*, bookings@flyfishingnorthgeorgia.com)

Board Member: Hadi Irvani (General Partner at Infill Capital Partners, University of Virginia - UVA)

Strategic Advisor & Sponsor: Hill Hardman (Granite Holdings)

Ultimate KPI: Fund world-class fly fishing trip to Argentina!

1. Executive Summary

Compensatory stream mitigation operates in a highly regulated, dual-track federal and state permitting environment. The U.S. Army Corps of Engineers (USACE) Savannah District governs federal Clean Water Act (CWA) Section 404 compliance, while the Georgia Department of Natural Resources (DNR) Environmental Protection Division (EPD) regulates state erosion control and trout stream buffer variances.

This Outreach Plan provides Hunter Morris with a highly structured directory of actual regional decision-makers, step-by-step agency coordination protocols, and ready-to-use communication templates to fast-track our **Draft Prospectus, Prospectus, Mitigation Banking Instrument (MBI)**, and **EPD Stream Buffer Variances** for Anderson Creek (Roya's Cabin) and Goldmine Hollow (Hunter's Cabin).

2. Key Regulatory Stakeholders Directory



A. U.S. Army Corps of Engineers (USACE) — Savannah District

The lead federal agency chairing the Interagency Review Team (IRT). They approve credit allocations, MBIs, and execute Nationwide Permit 27 (NWP 27) authorizations.

1. Justin Hammonds (Mitigation Branch Lead)

- **Role:** Directs all mitigation banking approvals, RIBITS ledger configurations, and IRT policy compliance across the Savannah District.
- **Email:** justin.a.hammonds@usace.army.mil
- **Significance:** Ultimate arbiter of our stream credit generation calculations and release schedule milestones.

2. Regulatory Division Piedmont Branch (North Georgia Regional Office)

- **Jurisdiction:** Gilmer, Fannin, Union, and Towns counties (Upper Coosa and Upper Chattahoochee trout basins).
- **Phone:** (678) 422-2735
- **Email:** CESAS-RD@usace.army.mil (General Regulatory Inquiries)
- **Address:** 1590 Adamson Parkway, Suite 200, Morrow, GA 30260

B. Georgia DNR Environmental Protection Division (EPD) — Watershed Protection Branch

Governs state water quality standards. EPD must approve all Land Disturbing Activity (LDA) permits and issue Stream Buffer Variances for working within the protected 50-foot North Georgia trout stream buffers.

1. Michael Berry (Erosion & Sedimentation Unit Manager)

- **Role:** Head of the Erosion and Sedimentation Unit. Oversees state buffer variance reviews and programmatic compliance.
- **Email:** Michael.Berry@dnr.ga.gov
- **Phone:** (470) 524-4621

2. Brian Kent (Senior Environmental Reviewer & Engineer)

- **Role:** Technical staff reviewer responsible for field inspections, reviewing hydrology plans, and issuing trout stream buffer variances.
- **Phone:** (470) 604-9419
- **Address:** 2 Martin Luther King Jr. Drive SE, Suite 1456, East Tower, Atlanta, GA 30334

3. Step-by-Step Agency Coordination Protocol

To secure USACE and EPD approvals without costly design delays, Hunter must execute the following structured 4-stage coordination protocol:

CHRONOLOGICAL REGULATORY PIPELINE			
[Stage 1: Pre-App] ■■■■	[Stage 2: MBI Draft] ■■■■	[Stage 3: State Buffer] ■■■■	[Stage 4: Execution] ■■■■
Informal Site Visit ordered & Release Hammonds & IRT Capitalization	Formal Public Notice USACE Savannah	DNR EPD Variance App Michael Berry & Kent	CE Rec 15%

Stage 1: Pre-Application Site Visit (Months 1–3)

- **Objective:** Get Justin Hammonds and IRT agency representatives (EPA, USFWS, GA DNR Wildlife Resources) out to **Roya's Cabin at Anderson Creek** *before* spending capital on detailed HEC-RAS hydraulic modeling.

- **Action:** Submit a conceptual **Draft Prospectus** outlining geomorphic degradation (bank shear stress, lateral erosion) and proposed Natural Channel Design (NCD) cures (J-hooks, root wads).
- **Regulatory Meeting Protocol:** Walk the channel with the IRT. Hunter should lead the dialogue (using the geomorphic stream diagnostics walk talk-tracks in **File 13**) to establish technical credibility, demonstrating a deep understanding of wild trout breeding habitats, benthic substrates, and hyporheic flows.

Stage 2: Formal Prospectus & Public Notice (Months 4–6)

- **Objective:** Initiate the official 30-day federal public comment period.
- **Action:** Submit the comprehensive **Prospectus** to the USACE Piedmont Branch.
- **Coordination Point:** Proactively engage regional conservation non-governmental organizations (NGOs) like the **Chattahoochee Riverkeepers** or **Trout Unlimited**. Share our restoration design to secure their letters of support, which offsets potential public opposition and fast-tracks USACE evaluation.

Stage 3: State EPD Buffer Variance Filing (Months 7–9)

- **Objective:** Obtain state EPD approval to operate heavy machinery within the protected 50-foot trout buffer.
- **Action:** Apply for a **State Stream Buffer Variance** under Georgia EPD Guidelines through **Brian Kent** and **Michael Berry**.
- **Engineering Defense:** Demonstrate that our buffer intrusion is purely temporary and ecologically restorative (e.g., live-staking tag alders, planting silky dogwood, stabilizing active mudslides). Use a reference case variance (such as **EPD Buffer Variance BV-067-23-03**) to prove design compliance.

Stage 4: Mitigation Banking Instrument (MBI) & Release (Months 10–12)

- **Objective:** Execute the final regulatory contract and secure the initial **15% credit release (1,935 credits)**.
- **Action:** Coordinate with **Justin Hammonds** to finalize the MBI. Record the perpetual Conservation Easement in Fannin/Gilmer county land deeds, and establish our **\$220,000 Financial Assurance Performance Bond**.
- **RIBITS Entry:** Once the MBI is signed, coordinate with USACE Mitigation Branch staff to upload our project into the **RIBITS (Regulatory In-lieu fee and Bank Information Tracking System)** database, making our credits visible to Southeast developers.

4. Ready-to-Use Government Outreach Email Templates

Template A: USACE Mitigation Branch pre-App Site Visit Request

Target: Justin Hammonds (USACE Mitigation Lead)

Purpose: Requesting an informal pre-application field audit at Roya's Cabin.

Subject: Request for Pre-Application Site Visit | Anderson Creek Stream Mitigation Project (Gilmer/Fannin Co.)

Dear Mr. Hammonds,

I hope this email finds you well.

I am writing on behalf of Blue Ridge Stream Restoration & Mitigation LLC to request an informal pre-application site visit and initial IRT review for a proposed stream mitigation p

project along Anderson Creek in Fannin/Gilmer County, Georgia.

The project site consists of approximately 1,500 linear feet of perennial, degraded coldwater trout habitat showing severe bank destabilization and channel widening due to historical land clearing. Our geomorphic design-build strategy centers on Rosgen Priority 1 Natural Channel Design (NCD), reconnecting the channel to its active floodplain, installing bioengineered root-wads, and establishing a perpetual 100-foot native canopy buffer.

We operate under formal corporate governance led by myself and my Board Member, Hadi Irvani (General Partner at Infill Capital Partners, University of Virginia - UVA alumnus).

We are finalizing our conceptual Draft Prospectus and would highly appreciate the opportunity to walk the reach with you and members of the Interagency Review Team (IRT) to obtain your baseline geomorphic feedback.

Would your branch have availability for a site visit during the week of [Insert Date Options, e.g., June 15th]?

Thank you for your time, leadership, and consideration of this ecological restoration project.

Best regards,

Hunter Morris
Co-Founder & Managing Director
Blue Ridge Stream Restoration & Mitigation LLC
bookings@flyfishingnorthgeorgia.com | (555) 123-4567

Template B: Georgia EPD Buffer Variance Technical Inquiry

Target: Brian Kent (Senior Reviewer) & Michael Berry (Unit Manager)

Purpose: Proactive coordination regarding construction within the 50-foot trout buffer.

Subject: Technical Inquiry: Stream Buffer Variance for Bioengineered Restoration | Anderson Creek

Dear Mr. Kent and Mr. Berry,

I hope this message finds you both well.

My name is Hunter Morris, Fluvial Geomorphologist and Managing Director at Blue Ridge Stream Restoration & Mitigation LLC. I am contacting you regarding our upcoming Stream Buffer Variance application for the proposed Anderson Creek Ecological Restoration Project in Fannin/Gilmer County.

The project involves restoring 1,500 linear feet of degraded perennial trout stream using bioengineered J-hooks, rock cross-vanes, and live willow/alder staking. To install these restoration structures and narrow the widened channel, temporary construction access within the protected 50-foot trout stream buffer is required.

Our geomorphic design-build blueprints are modeled after natural channel parameters, ensuring zero permanent net fill and complete long-term vegetative stabilization.

I would highly appreciate a brief, 10-minute introductory call with your unit to present our bioengineering details, ensure compliance with EPD guidelines, and discuss the mitigation on credit baseline before we submit our formal Stream Buffer Variance application.

Are you available for a brief call next Tuesday, [Insert Date], at 2:00 PM?

Thank you for your dedication to protecting Georgia's water resources and trout habitats.

Best regards,

Hunter Morris
Co-Founder & Managing Director
Blue Ridge Stream Restoration & Mitigation LLC
bookings@flyfishingnorthgeorgia.com | (555) 123-4567

5. Standard Operating Procedure for IRT Site Audits

When hosting Justin Hammonds, Brian Kent, or other IRT representatives on-site at Roya's Cabin or Hunter's Cabin, Hunter must execute the following field checklist to maximize regulatory trust:

- **[] Establish Safety & Accessibility:** Clear the pathways along the stream bank in advance. Ensure access points are safe, stable, and marked with geomorphic survey stakes showing bankfull indicators.
- **[] Technical Site Folders:** Provide each agency official with a high-durability waterproof folder containing:
 - The conceptual geomorphic design map.
 - A summary page of the Savannah District SOP credit yield projection (~12,900 credits).
 - Pre-restoration survey photos showing active erosion hazards.
- **[] Fluvial Diagnostic Walk:** Lead the IRT along the degraded reach. Point out exact indicators of instability:
 - *Riffle embeddedness* (showing sand siltation clogging wild trout spawning cobbles).
 - *Outer bank sheer tension cracks* (proving lateral bank failure due to overwidening).
 - *Groundwater table decoupling* (showing stream incisement disconnect from the floodplain).
- **[] Emphasize NCD over Rip-Rap:** Articulate clearly why concrete and rip-rap are destructive to trout waters (thermal heating, velocity transfer) and show exactly where geomorphic root wads and live willow stakes will absorb kinetic energy, naturally scour deep pool refuges, and filter runoff.